

26STCV06318 26STCV06318

County: los-angeles

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Case Number: 26STCV06318 Hearing Date: August 24, 2026 Dept: 512

HEARING DATE: Mon., August 24, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Damola

v. Mobilitas Ins. Co, et al. PET. FILED: 02-26-26

CASE NUMBER: 26STCV06318

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL CONSOLIDATED ARBITRATION

MOVING PARTY: Petitioner Omotayo Damola

RESP. PARTY: Respondent United States Fire Insurance
Company

MOTION TO COMPEL CONSOLIDATED ARBITRATION

(CCP § 1281, et seq.)

TENTATIVE RULING:

Petitioner

Omotayo Damola's Motion to Compel Consolidated Arbitration is GRANTED. However, the parties are ordered to file and serve a joint list of arbitrator nominations within 20 days of this Court's order. Status Conference re: Arbitrator is scheduled for September 30, 2026 at 8:30 a.m.

Pursuant to Code of Civil Procedure section 1281.4, all proceedings are STAYED pending the outcome of arbitration. The Case Management Conference is VACATED.

Post-arbitration status conference is scheduled for February 15, 2027 at 8:30 a.m.

Moving party is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 21 & August 4, 2026 []

Late [] None

REPLY: Filed

on July 27, 2026 [] Late [] None

ANALYSIS:

I.

Background

On February 26, 2026, Petitioner

Omotayo Damola ("Petitioner") filed a Petition to Open Unlimited Civil Court File to Establish Jurisdiction Over Uninsured/Underinsured Motorist Arbitration against Respondents Mobilitas Insurance Company ("Mobilitas") and Blue Star Claims, LLC ("Blue Star").

On March 4, 2026, Petitioner filed

Proof of Service of the Petition on Mobilitas.

On March 13, 2026, Blue Star filed an

Opposition to the Petition. On April 14, 2026, Petitioner filed a Reply. On June 8, 2026, U.S. Fire filed an Opposition to the Petition. That same day, Petitioner filed a Reply.

On March 16, 2026, Petitioner filed Proof of Service of the Petition on Blue Star.

On May 6, 2026, Petitioner filed an Amendment to Complaint to rename Blue Star as United States Fire Insurance Company ("U.S. Fire").

On June 9, 2026, Petitioner filed the instant Motion to Compel Consolidated Arbitration (the "Motion").

On July 21, 2026, U.S. Fire filed an Opposition.

On July 27, 2026, Petitioner filed a Reply to U.S. Fire's Opposition.

That same day, Petitioner also filed a Reply to an alleged Mobilias' Opposition.

On July 28, 2026, U.S. Fire filed an Objection to evidence filed in support of Petitioner's Reply.

On August 3, 2026, the Court continued the hearing on the Motion to allow Mobilias to file an Opposition that was not in the Court's docket. (8/3/26 Order.)

On August 7, 2026, Mobilias filed its Opposition (In Part).

II.

Legal
Standard

California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act, including a presumption in favor of arbitrability. (*Engalla v.*

Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 971-72.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, the party opposing the petition then bears the burden of proving by a preponderance of the evidence any fact necessary to demonstrate that there should be no enforcement of the agreement, and the trial court sits as a trier of fact to reach a final determination on the issue. (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413 ("Rosenthal").) The Court is empowered by the Code of Civil Procedure section 1281.2 to compel parties to arbitrate disputes pursuant to an agreement to do so.

Code

of Civil Procedure section 1281.2 states:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a)

The right to compel arbitration has been waived by the petitioner; or

(b)

Grounds exist for the revocation of the agreement.

(c) A party to the

arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc., §§

1281.2(a)-(c).)

The

petition to compel arbitration functions as a motion and is to be heard in the manner of a motion – namely, the facts are to be proven by affidavit or declaration and documentary evidence with oral testimony taken only in the court's discretion. (Code Civ. Proc., § 1290; Rosenthal, supra, 14 Cal.4th at p. 402.) The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. Rules of Court, rule 3.1330.)

If

the court orders arbitration, then the court shall stay the action until “an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”
(See Code Civ. Proc., § 1281.4.)

III.

Discussion

A. Existence of Arbitration Agreements

Under both the FAA and California Law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.)

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence.” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.)

Here, Petitioner submits a copy of the Arbitration Agreement between Petitioner and Mobilitas (Motion, Diarian Decl., Exh. A) and the Arbitration Agreement between Petitioner and U.S. Fire (Motion, Diarian Decl., Exh. C).

Neither Mobilitas nor U.S. Fire dispute the existence of their respective Arbitration Agreements with

Petitioner.

Thus, the Court finds Petitioner has met the burden to prove the existence of enforceable arbitration agreements as to both Mobilias and U.S. Fire. (Gamboa, supra, 72 Cal.App.5th at p. 165.)

Further, the parties do not dispute that California law governs the Court's evaluation of the arbitration agreements and discussion of consolidated arbitration in this matter. (See e.g., Code Civ. Proc., § 1281.2; Mercury Ins. Group v. Superior Court (1998) 19 Cal.4th 332, 342-343; Ins. Code, § 11580.2, subd. (f).)

B. Consolidation of Arbitration Proceedings

Parties' Arguments

Petitioner moves to consolidate the arbitration proceedings between all the parties under Code of Civil Procedure section 1281.3. Petitioner contends that both Mobilias and U.S. Fire are contractually obligation to arbitrate; U.S. Fire's policy is not workers' compensation and thus does not bar arbitration; and consolidation of arbitration is necessary to avoid delay, inconsistent rulings, and prejudice. (Motion, pp. 6-7.) Petitioner contends this case is appropriate for arbitration consolidation on the grounds that "[b]oth carriers are bound by arbitration clauses; [b]oth disputes arise from the same transaction, specifically, petitioner's automobile accident and injuries; [e]ach carrier's position depends on the other carrier's alleged responsibility; and [p]etitioner risks inconsistent rulings and indefinite delay absent court intervention." (Motion, p. 7.)

In a partial Opposition, Mobilias stipulates to consolidation of arbitration between Petitioner, Mobilias, and U.S. Fire. Mobilias only raises arguments in opposition should consolidation not be granted.

In Opposition, U.S. Fire contends that arbitration consolidation is inappropriate on the following grounds: there are not common issues between all the parties' claims; Mobilias' policy with

Petitioner and U.S. Fire's policy with Petitioner address fundamentally different categories of loss and serve different compensatory purposes; arbitration will require resolution of different legal and factual questions; and consolidation would prejudice Mobilias and U.S. Fire rather than streamline proceedings. (Opp., pp. 3-12.)

In Reply to Mobilias' Opposition,
Petitioner highlights that Mobilias effectively concedes to arbitration consolidation between the parties. (Reply, pp. 3-6.)

In Reply to U.S. Fire's Opposition,
Petitioner states U.S. Fire misstates the standard under Code of Civil Procedure section 1281.3; U.S. Fire artificially separates legal questions from underlying facts; and mistakenly relies on *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190. (Reply, pp. 3-5.) Further, Petitioner contends U.S. Fire cannot demonstrate prejudice from arbitration consolidation and emphasizes that separate arbitrations in this matter would produce duplicative litigation and create the risk Code of Civil Procedure section 1281.3 is designed to prevent. (Reply, pp. 5-6.)

Legal Standard

Code of Civil Procedure section 1281.3
states:

A party to an arbitration agreement
may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when:

(1) Separate arbitration
agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the
same transactions or series of related transactions; and

(3) There is common issue or
issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.

...

In the event that the arbitration agreements in consolidated proceedings contain inconsistent provisions, the court shall resolve such conflicts and determine the rights and duties of the various parties to achieve substantial justice under all the circumstances.

The court may exercise its discretion under this section to deny consolidation of separate arbitration proceedings or to consolidate separate arbitration proceedings only as to certain issues, leaving other issues to be resolved in separate proceedings.

(Code Civ. Proc., § 1281.3.)

In enacting this statute, “California has manifested a strong policy favoring consolidating arbitrations involving common issues of law and fact. There are at least three important aims of this policy: the efficient settling of private disputes, judicial economy, and the avoidance of contrary results.” (Garden Grove Community Church v. Pittsburgh-Des Moines Steel Co. (1983) 140 Cal.App.3d 251, 262.)

“[T]he general right to contractual arbitration of uninsured motorist coverage issues generally resulting in a binding and final decision is, indeed, a right -- but nothing more. It may be ‘revoked’ by rescission. Even if not ‘revoked,’ it may be lost by a party’s waiver. And even if not waived, it may have to yield if there is an issue of law or fact common to the arbitration and a pending action or proceeding with a third party and there is a possibility of conflicting rulings thereon” (Mercury Ins., supra, 19 Cal.4th at pp. 347-348.)

Analysis

Here, the Court finds the requirements of 1281.3 are met. There are separate arbitration proceedings between Petitioner and Respondents, Mobilitas and U.S. Fire. The dispute arises out of the same underlying transaction – namely, a 2024 motor vehicle accident that involved Petitioner driving in the course and scope of rideshare services for Lyft, and the issues involved are liability and the amount of compensation owed to Plaintiff for medical expenses and wage loss. (See Pet.; Motion, pp. 3-4.) These common issues create a possibility for conflicting rulings. Moreover, the Court

notes that Mobilias indicates that the Petitioner-Mobilias Arbitration is dependent on the outcome of the Petitioner-U.S. Fire Arbitration. (See Opp., pp. 5-7.)

U.S. Fire's contentions in opposition are without merit. U.S. Fire contends that the arbitrator in both proceedings will be required to review different contracts and policies and have a different scope of inquiry as to each respective contract and policy; however, this is a common situation. (See e.g., *Garden Grove*, supra, 140 Cal.App.3d at pp. 256-257.) Moreover, the governing statute itself even contemplates scenarios where arbitration agreements differ. (See Code Civ. Proc., § 1281.3.)

To the extent U.S. Fire asserts that the respective arbitration provisions arise from different sources of authority and are subject to different scopes of inquiry and thus consolidated arbitration should be denied, the Court is unpersuaded such circumstances bar consolidated arbitration. The Court does not expect the arbitrator to treat the parties' contracts identically; rather, the Court trusts the arbitrator will appropriately address each contract in their own right.

Additionally, the Court notes, and the parties do not dispute, that the arbitration provisions in the respective contracts are not conflicting in their express terms in any respect. (See Motion, Diarian Decl., Exhs. A, C.)

The Court also finds U.S. Fire's reliance on *Bouton v. USAA Casualty Ins. Co.* (2008) 43 Cal.4th 1190 inapt to and distinguishable from the instant circumstances. (Opp., pp. 7-10.) Broadly put, *Bouton* involves issues not in dispute here such as the nature of certain issues and whether those issues may be arbitrated; by contrast, the parties here do not dispute that their respective claims are subject to arbitration.

As the three explicit requirements under section 1281.3 are facially met, "[t]here is no reason to deny consolidation unless it would impair a substantial right or obligation of a party under the contract." (*Garden Grove*, supra, 140 Cal.App.3d at p. 264.) The Court does not find that U.S. Fire has demonstrated consolidated arbitration would impair a substantial right or obligation under

Petitioner and U.S. Fire's contract or prejudice U.S. Fire in any way.

Thus, the Court finds consolidated arbitration is warranted.

However, the Court rejects Petitioner's request for a time limitation on the commencement of the arbitration as the request is cursory, legally unsupported, opposed by Mobilias, and unpersuasive. (See Motion, p. 8; Opps.)

C. Appointment of Arbitrator

In the Motion, Petitioner requests the Court appoint one of the following neutrals: the Honorable Michael Latin (Ret.) – Signature Resolution; David Karen, Esq. – Judicate West; R.A. Carrington, Esq. (Motion, p. 8.)

In Opposition, U.S. Fire requests the Court appoint a neutral to arbitrate the consolidated arbitration proceedings through the Code of Civil Procedure 1281.6 process. (Opp., pp. 13-14.) U.S. Fire disputes the Court appointing Petitioner's and Mobilias' suggested neutral of the Honorable Jacqueline Connor (Ret.). (Opp., p. 13.)

In Opposition, Mobilias rejects the arbitrators suggested by Petitioner in the Motion and proposes the following neutrals: Alyse Golden Berkley, Mitch Green, Judge Thierry Colaw, and Judge Chris Conway. (Opp., p. 7.) However, Mobilias requests the parties decide the arbitrator amongst themselves and opposes Petitioner's request to have the Court decide the arbitrator.

If all of the applicable arbitration agreements name the same arbitrator, arbitration panel, or arbitration tribunal, the court, if it orders consolidation, shall order all matters to be heard before the arbitrator, panel, or tribunal agreed to by the parties. If the applicable arbitration agreements name separate arbitrators, panels, or tribunals, the court, if it orders consolidation, shall, in the absence of an agreed method of selection by all parties to the consolidated arbitration, appoint an arbitrator in accord with the procedures set forth in Section 1281.6.

(Code Civ. Proc., § 1281.3.)

If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

(Code Civ. Proc., § 1281.6.)

Here, the Court finds that the respective Arbitration Agreements do not name arbitrators, panels or tribunals, and the Court has ordered consolidation of arbitration as to the parties. (See Motion, Diarian Decl., Exhs. A, C; Code Civ. Proc., § 1281.3.)

However, the Court notes that the parties do not agree on the method of appointing an arbitrator, and the parties did not submit a joint list of arbitrator nominations. Further, Petitioner provides three arbitrator suggestions; U.S. Fire objects to an unlisted arbitrator allegedly previously proposed by Petitioner but does not provide any arbitrator nominations; and Mobilitas rejects Petitioner's suggestions and provides four different arbitrator nominations. (See Motion; Opps.)

The Court finds the parties fail to present an agreed-upon method for appointment of an arbitrator, and Petitioner

and U.S. Fire have requested the Court appoint an arbitrator. Given these circumstances, the Court will nominate five arbitrators from a list of people supplied jointly by the parties. (See Code Civ. Proc., § 1281.6.)

However, the Court cannot nominate arbitrators for the parties' consideration absent a joint list of arbitrator nominations. As such, the Court orders the parties to submit a joint list of arbitrator nominations within 20 days of this Court's order.

IV.

Conclusion
& Order

Petitioner Omotayo Damola's Motion to Compel Consolidated Arbitration is GRANTED. However, the parties are ordered to file and serve a joint list of arbitrator nominations within 20 days of this Court's order. Status Conference re: Arbitrator is scheduled for September 30, 2026 at 8:30 a.m.

Pursuant to Code of Civil Procedure section 1281.4, all proceedings are STAYED pending the outcome of arbitration. The Case Management Conference is VACATED.

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